

25STCV07986 25STCV07986

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-08-06

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Case Number: 25STCV07986 Hearing Date: August 6, 2026 Dept: 224

Dusty Costa Inc. v. Creative Distribution Services

TENTATIVE RULING

The OSC is CONTINUED to November 24, 2026, at 9:00 a.m. for Plaintiff to remedy the deficiencies. Plaintiff shall submit its updated default judgment package 10 days before the hearing.

The Court also sets an Order to Show Cause Re: Sanctions on November 24, 2026, at 9:00 a.m., in the amount of \$500 for Plaintiff's Counsel's 1) Failure to Comply With the 5/7/26 Order to File a Corrected Default Judgment Package CCP 177.5; and 2) Failure to Obtain a Default Judgment CRC 3.110(g)-(i).

The Court also gives notice it is also setting an OSC Re Dismissal for Failure to Prosecute pursuant to CRC 3.1340(a), on November 24, 2026, at 9:00 a.m., and intends to dismiss this action for failure to obtain a default judgment if a default judgment package is not filed by December 1, 2026.

ANALYSIS

The Complaint arises out of a breach of contract wherein Defendants breached the Sales Agreement by failing to pay amounts due under the Agreement

PROOF OF SERVICE/DEFAULT:

Default was entered on 8/5/2025

PRINCIPAL REQUESTED: \$ 89,947.29

COSTS: \$ 705.25

ATTORNEY FEES: \$ 2,688.94

TOTAL: \$ 93,341.48

Discussion

Amounts in complaint and request are aligned.

585 Declaration has been provided. (Costa Decl.)

Attorney's fees are requested by the Complaint.

Attorney's fees requested are in accordance with LASC Local Rule 3.214.

Costs are requested in the amount of \$705.25 as enumerated in the Memorandum of Costs.

Proof of proper address for Declaration of Mailing has been provided.

PROBLEMS:

No proposed form of judgment is provided or filed. (JUD-100).

Apart from the copy of the original agreement, there is no documentary evidence proving up the amounts owed. (Costa Decl., Exh. A) The Complaint alleges Defendant's failure to pay 10 invoices totaling \$89,947.29 but Plaintiff has not provided copies of these invoices, or any other documentary evidence showing that the amount is owed.

The case caption lists DOES 1-10 as Defendants. The Doe Defendants have not been dismissed.

On May 7, 2026, the Court ordered counsel to correct these deficiencies ten days prior to the hearing on August 6, 2026. (Minute Order 5/7/26.) Counsel has not complied with the Court's Order. No corrected documents have been filed.

Conclusion

The OSC is CONTINUED to November 24, 2026, at 9:00 a.m. for Plaintiff to remedy the deficiencies. Plaintiff shall submit its updated default judgment package 10 days before the hearing.

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Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.